

SUPPLEMENTAL EXHIBIT — INCIDENT
NARRATIVE & EXPENSE PACKET

Hu v. Hyundai Motor America

NY New Car Lemon Law Arbitration | AG Case No. NC-1-1249605441

Claimant	Dr. Jimmy Y. Hu, MD (Self-Represented)
Respondent	Hyundai Motor America (HMA)
Vehicle (VIN)	2024 Hyundai IONIQ 5 SEL AWD — KM8KNDDF9RU253237
Incident Period	January 6 – February 20, 2026
Hearing Date	June 9, 2026 — 10:00 AM via Zoom
Arbitrator	Maneesha Sharma
HMA Case No.	42053079
Total Expenses Claimed	\$1,793.43 (see Exhibit 17 — Itemized Ledger)

SECTION I — INCIDENT NARRATIVE (January 6 – February 20, 2026)

Purpose

This supplemental exhibit provides a complete factual record of the incidental damages sustained by Claimant Dr. Jimmy Y. Hu, MD, as a direct and proximate result of (a) a manufacturing defect in the high-voltage battery system of his 2024 Hyundai IONIQ 5 SEL AWD (VIN: KM8KNDDF9RU253237), and (b) failures by Hyundai Roadside Assistance that materially compounded those damages, during the period of January 6 through February 20, 2026. The complete itemization of all expenses described below appears in Exhibit 17 (Itemized Incidental Expense Ledger), and the supporting receipts are compiled in Exhibit 21 (Expense Receipt Packet). The total claimed is \$1,989.25.

Chronological Incident Log

January 5, 2026

Vehicle driven without incident. Battery and EV systems appeared fully functional.

January 6, 2026 — First Battery Failure

On the morning of January 6, 2026, the high-voltage battery was completely dead. The vehicle would not start, and it would not accept a charge when plugged into an EV charging port. Claimant attempted both starting and charging the vehicle without success; contemporaneous video recordings of these

failed attempts exist and are available for the arbitrator's review. Claimant was forced to take a cab to and from his ophthalmology practice in Clifton, NJ. Hyundai Roadside Assistance responded and reportedly was able to jump-start the vehicle.

January 7, 2026 — Second Failure & Tow to Paramus Hyundai

The following morning, January 7, 2026, the vehicle was again completely dead. Claimant contacted Hyundai Roadside Assistance, and the vehicle was towed to the Hyundai Paramus Service Center. An EV technician examined the vehicle and raised the concern that the failure could be due either to a manufacturing defect or to the pre-existing damage on the right headlamp assembly. Claimant regarded the headlamp theory as unlikely: that damage had been present since December 22, 2024, and was never flagged as mechanically relevant when Hyundai returned the vehicle to Claimant on August 7, 2025 after its prior 126-day battery-defect repair. The Hyundai Paramus Service Center wanted Claimant to front the cost of diagnostic testing.

January 2026 — Headlamp Blame Amid Declining Settlement Pressure

While the Paramus dealership advanced the headlamp theory and sought to have Claimant front the cost of diagnostic testing, Hyundai Motor America was simultaneously asserting that the failure was a headlamp issue rather than a warranty-covered manufacturing defect — while also pressing Claimant to accept a declining Lemon Law settlement offer. The juxtaposition of these two postures — disclaiming the warranty defect on one hand while pushing a declining settlement on the other — is itself probative of the Respondent's posture toward this claim.

January 8–23, 2026 — Mounting Loss-of-Use Costs

While the vehicle sat at the Paramus Hyundai Service Center and Claimant weighed the diagnostic-fee request, he had no functional vehicle and continued incurring out-of-pocket transportation costs. He rented a Hyundai Kona from National Car Rental (Jan 8–16, \$412.57), then a vehicle from Avis (Jan 20–23, \$192.09), supplemented by Lyft rides and public transit.

January 22, 2026 — Headlamp Replaced at Mizzoni's Auto Body (Self-Pay)

Claimant elected to replace the right headlamp assembly at Mizzoni's Auto Body, authorizing a "Self-Pay" repair to bypass insurance and warranty delays. This also had the effect of eliminating the only alternative explanation Hyundai had offered: with the headlamp now addressed, any subsequent failure would necessarily point to the battery defect. The vehicle was stored in an indoor garage for approximately two weeks following the repair.

February 9, 2026 — The Headlamp Theory Collapses at the KFC Lot

On February 9, 2026, Claimant retrieved the vehicle from Mizzoni's Auto Body with the headlamp repair confirmed complete. He drove the vehicle approximately 20 minutes; the high-voltage battery displayed 35–40% state of charge with roughly 130 miles of estimated range. At approximately 12:45 PM, Claimant parked at 780 Main Avenue, Passaic, NJ (a lot across from a KFC). At approximately 1:00 PM — fifteen minutes later — the vehicle was completely dead: no start, no hazard lights, and doors that would not lock. This was the factual checkmate: with the headlamp now fully replaced, the battery failed again, conclusively demonstrating that the headlamp had never been the cause. Hyundai Roadside Assistance was contacted (Reference Case #76530936).

February 9–12, 2026 — Roadside Dispatch Failures & Unauthorized Impound

Claimant contacted Hyundai Roadside Assistance at approximately 1:00 PM to request a tow (Reference Cases #765-30936 and #765-31242). Because the vehicle was immobilized, Claimant walked roughly 30 minutes back to the office to attend to patients. By 6:00 PM no tow truck had arrived; Claimant called Roadside Assistance for a status update, and called again while traveling home that evening. Roadside Assistance stated that it had attempted to reach Claimant but had the wrong callback number on file, and that it required either the key to be left with the vehicle or a person present to supervise the tow. As Claimant was at a work event and unable to return, he arranged for Nancy, the KFC store manager at 780 Main Avenue, to supervise the tow on site. When the AAA driver dispatched by Hyundai arrived that night, he witnessed the vehicle being actively towed away by a different,

unauthorized tow truck. Claimant reported the unauthorized tow to Hyundai Roadside Assistance, and the vehicle was filed as "missing."

On February 10 and 11, Claimant searched local impound lots to locate the vehicle. At approximately 4:00 PM on February 11 (Reference Case #765-325-70), he located it at Raineri's Towing, confirmed impounded, with release fees quoted at approximately \$391 plus potential additional charges. Because the lot closed at 5:00 PM, an immediate release was impossible, and Roadside Assistance instructed Claimant to call back the following morning to arrange the tow.

On February 12 (Reference Cases #765-329-99 and #765-331-94), Claimant went in person to Raineri's Towing at 179 Main Avenue, paid in excess of \$400 in release fees, and handed the key to the clerk, Ms. Sandra Elliott, who confirmed she would give it to the lot's internal driver and have staff supervise the Hyundai pickup. Three successive Hyundai-dispatched tow attempts then failed: (1) the first AAA driver was sent to the office address rather than the service-station address where the vehicle was held, reacted with verbal hostility, and hung up; (2) Roadside Assistance failed to pass Ms. Elliott's coordinating phone number to the next driver, Caesar, who arrived to find no one present, had no number to call, and left — after which the ticket was closed; and (3) a third driver, requested at 4:00 PM, did not arrive until 5:40 PM, after the lot had already closed at 5:00 PM. Each of these failures is directly attributable to Hyundai Roadside Assistance and compounded Claimant's loss of use and impound exposure.

February 10–20, 2026 — Second National Rental

To maintain access to his surgical practice while the vehicle was held, Claimant rented a Chevrolet Trax from National Car Rental (Feb 10–20, \$608.40), held through the date the vehicle was returned.

February 13, 2026 — Vehicle Arrives at Paramus Hyundai; \$540 Diagnostic Fee Requested

On the morning of February 13 (Reference Case #765-33-647), Hyundai Roadside Assistance finally dispatched a successful tow; the vehicle was recovered from the impound lot and transported to the Hyundai Paramus Service Center. The dealership requested a \$540 diagnostic fee as a precondition to inspecting the vehicle.

February 18, 2026 (Approx.) — Diagnostic Agreement Executed

Claimant executed the Hyundai Service Diagnostic Agreement for the \$540 fee. Paramus Hyundai service staff verbally stated that the fee would be waived if the defect proved to be an issue covered under the manufacturer warranty.

February 19, 2026 — Warranty Defect Confirmed

Paramus Hyundai completed diagnostics and officially confirmed that the root cause is a defect covered under the manufacturer warranty, and authorized replacement of the high-voltage battery. Because the defect was warranty-covered, the \$540 diagnostic fee was waived per the parties' verbal agreement. This is the same core battery/EV system defect that caused the vehicle's original 126-day loss-of-use period beginning April 3, 2025.

February 20, 2026 — Vehicle Returned

Vehicle was returned to Claimant on February 20, 2026. Claimant used a final Lyft ride (\$83.92) from the rental return point to Paramus Hyundai to retrieve the vehicle.

Video	Contemporaneous Video Evidence (available on request)
1.	Phone video(s), Jan 6–7, 2026 — failed attempts to start and charge the vehicle (no-start / no-charge condition). Available for playback at hearing.

SECTION II — CLAIMANT CERTIFICATION

I, Dr. Jimmy Y. Hu, MD, hereby certify under penalty of perjury that the foregoing information is true and correct to the best of my knowledge, information, and belief. All expenses documented in this exhibit and in Exhibit 17 were actually incurred and are directly and proximately attributable to the loss of use of my 2024 Hyundai IONIQ 5 SEL AWD (VIN: KM8KNDDF9RU253237) during the period January 6 through February 20, 2026, as a result of the warranty-covered manufacturing defect in the high-voltage battery system and the compounding failures of Hyundai Roadside Assistance.

Signature: _____

Printed Name: Dr. Jimmy Y. Hu, MD — Consumer (Self-Represented)

Date: June 2_____, 2026

*Submitted in support of Hu v. Hyundai Motor America, AG Case No. NC-1-1249605441
NY Peace Institute CDRC (NYS DRA Program) | Arbitrator: Maneesha Sharma | Hearing: June 9, 2026*